

26NWCV00337 26NWCV00337

County: los-angeles

Division: Civil Law and Motion

Department: C

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Case Number: 26NWCV00337 Hearing Date: August 12, 2026 Dept: C

MICHAEL REEVES v. WHITTIER

FIRST DAY COALITION, et al.

CASE NO.: 26NWCV00337

HEARING: 8/12/26 @

9:30 AM

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TENTATIVE ORDER

Plaintiff Michael Reeves's renewed motion for sanctions is DENIED.

Moving party(s) to give notice.

Background

On January 28, 2026, Plaintiff Michael Reeves ("Plaintiff") filed a complaint against Defendants Whittier First Day Coalition, County of Los Angeles, City of Whittier, Volunteers of America Los Angeles, and Does 1-50 (collectively, "Defendants"). On June 9, 2026, Plaintiff filed the operative first amended complaint against Defendants alleging causes of action for (1) violation of the Unruh Civil Rights Act, (2) disability discrimination and denial of equal access to publicly funded programs, (3) disability access violations and failure to provide reasonable accommodations, (4) statutory public entity liability, (5) negligent supervision and failure to train, and (6) declaratory relief.

Plaintiff alleges that this action arises from Defendants' coordinated and systemic failure to provide lawful, nondiscriminatory access to shelter, advocacy, and reasonable accommodations to a disabled, medically vulnerable individual who sought help after relocation to Whittier, California. Plaintiff alleges that on or about August 5, 2025, Plaintiff contacted 2- 1-1 and Adult Protective Services (APS) seeking emergency assistance. Plaintiff was referred to Volunteers of America and then directed—through coordination and referral—to Whittier First Day Coalition as the appropriate provider for shelter advocacy, intake, and related assistance in Whittier. Ultimately, Plaintiff alleges to have been denied shelter access, denied reasonable accommodations, and provided only minimal, ineffective assistance. Despite knowledge of Plaintiff's disabilities and risks, Defendants failed to provide safe alternatives or transportation to available resources. Plaintiff was left sleeping in his vehicle and on public streets immediately adjacent to the shelter for an extended period, without food or water.

On July 1, 2026, the Court granted Defendant County of Los Angeles's motion to declare Plaintiff a vexatious litigant and Plaintiff was ordered to deposit security in the amount of \$1,000.00. On July 1, 2026, Plaintiff filed a notice of appeal and on July 17, 2026, the Court issued a Notice of Default for Designation due to Plaintiff's failure to file proof of service of the Notice of Appeal.

On May 26, 2026, Plaintiff filed the original motion for sanctions, but on June 26, 2026, Plaintiff filed a notice withdrawing the motion for sanctions.

Now, Plaintiff seeks to renew the motion for sanctions. On July 2, 2026, Plaintiff filed the instant motion.

On July 27, 2026, Defendant County of Los Angeles ("County") filed its opposition.

Legal Standard

When an attorney or unrepresented party presents to the court a pleading or motion, the "attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following

conditions are met: (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law. (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. (4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief." (Code Civ. Proc., § 128.7, subd. (b).)

"If, after notice and a reasonable opportunity to respond, the court determines that subdivision (b) has been violated, the court may, subject to the conditions stated below, impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation. In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence." (Code Civ. Proc., § 128.7, subd. (c).)

Analysis

Plaintiff moves for sanctions pursuant to Code of Civil Procedure section 128.7 arising from the County's motion to declare Plaintiff a vexatious litigant.

The County argues that the motion was not frivolous and it was granted and Plaintiff's motion is procedurally defective because section 128.7 requires a fresh twenty-one day safe harbor period.

Civil Procedure section 128.7 subdivision (c)(1) requires that a sanctions motion be served on the opposing party at least twenty-one days before it is filed. "Failure to comply with the safe harbor provisions 'precludes an award of sanctions.'" (Transcon Financial, Inc. v. Reid & Hellyer, APC (2022) 81 Cal.App.5th 547, 551.) Plaintiff's proof of service shows he served the notice of motion on July 2, 2026, and filed it the same day with the Court. Thus, Plaintiff failed to provide the required twenty-one day notice and the motion for sanctions cannot be granted.

Even if Plaintiff had complied with the twenty-one day safe

harbor rule, Plaintiff has failed to show the vexatious litigant motion was frivolous. Whether a claim, defense or contention is frivolous under Code of Civil Procedure section 128.7 is measured objectively. (Bockrath v. Aldrich Chem. Co. (1999) 21 Cal.4th 71, 82.) Plaintiff only argues that the County's motion improperly aggregated unrelated matters from multiple jurisdictions and factual settings in support of its motion. Plaintiff disputes that the litigation history satisfies the requirements of Code of Civil Procedure section 391 and intends to present those issues to the appellate court. This does not show that the vexatious litigant motion was frivolous.

Accordingly, the Court denies Plaintiff's motion for sanctions.

Conclusion

Plaintiff Michael Reeves's renewed motion for sanctions is DENIED.